

21STCV31746 21STCV31746

County: los-angeles

Division: Civil Law and Motion

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Case Number: 21STCV31746 Hearing Date: July 10, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:05 PM on July 7, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on July 9, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiffs allege that Defendant could

not repair their vehicle to conform to warranties.

The parties settled the case. Plaintiffs

move for an award of attorney's fees, costs and expenses. Defendant moves to tax

Plaintiffs' memorandum of costs.

TENTATIVE RULING

Plaintiffs Jade Baer's & Mikaela

Baer aka Mikaela Silvar-Satterfield's motion for attorney's fees is GRANTED in the amount of \$128,025.50.

Defendant's

motion to tax costs is DENIED as to Item 1, filing and motion fees, Item 5, service of process costs, Item 8, expert witness fees, Item 11, models, blowups and photocopies of exhibits, Item 12, court reporter fees. The motion to tax Item 13, "Other" is GRANTED IN PART in the amount of \$1,934.53.

ANALYSIS

Motion For Attorney

Fees, Costs and Expenses

Discussion

The Court has

reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

The parties settled the case. Plaintiffs

move for an award of attorney's fees, costs and expenses in the total amount of \$213,313.65—consisting of (1) \$128,025.50 in attorney's fees (2) a 1.25 multiplier enhancement of \$64,012.75; and (3) \$21,275.40 in costs and expenses.

Plaintiff brought

causes of action pursuant to the Song-Beverly Act, Civil Code § 1790, et seq. Civil Code, § 1794(d) provides:

(d) If the buyer

prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

Plaintiff obtained a settlement against Ford in the amount of \$65,000; plus, attorneys' fees, costs, and expenses.

The determination of reasonable amount of attorney fees is within the sound discretion of trial courts. (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095; Akins v. Enterprise Rent-A-Car Co. (2000) 79 Cal. App. 4th 1127, 1134.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664.) The burden is on the party seeking attorney fees to prove reasonableness of the fees. (Center for Biological Diversity v. County of San Bernardino (2010) 188 Cal.App.4th 603, 615.)

The Court has broad discretion in determining the amount of a reasonable attorney's fee award which will not be overturned absent a "manifest abuse of discretion, a prejudicial error of law, or necessary findings not supported by substantial evidence." (Bernardi v. County of Monterey (2008) 167 Cal.App.4th 1379, 1393-94.) The Court need not explain its calculation of the amount of attorney's fees awarded in detail; identifying the factors considered in arriving at the amount will suffice. (Ventura v. ABM Industries Inc. (2012) 212 Cal.App.4th 258, 274-75.)

Here, the Complaint was filed on August 27, 2021. Defendants answered the Complaint on September 30, 2021. Thereafter, discovery law and motion was filed and Plaintiff successfully opposed Defendant's motion for

summary judgment. The parties conducted discovery enabling to prepare for trial and file trial-related materials, and the Court granted Plaintiff's request to bifurcate trial. The Court conducted the non-jury portion of the trial on May 9, 2025, and this case was on the verge of jury trial when the parties settled in October 6, 2025.

In general, Lemon Law litigation presents certain routine issues which are applicable to other consumers' vehicles, which would trigger economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of Lemon Law case. The Complaint included three causes of action, none of which were fraud-based.

The Court has examined the billing summary attached as Exhibit A of the Declaration of Roger Kirnos. The Court approves the hourly rates of \$175, \$250, \$275, \$295, \$325, \$345, \$350, \$375, \$395, \$400, \$425, \$450, \$495, \$500, \$550, \$600, \$645, \$675 per hour sought by both Plaintiffs' counsel's firm to be reasonable for counsel with similar experience in the field. (Karnos Decl., ¶¶ 27, 28.) However, the Court reads into these hourly rate experience in consumer and lemon law litigation which would account for efficiency and knowledge that would be expected of counsel billing at these rates, which in turn should minimize the amount of legal research and drafting of discovery requests and responses required for this Lemon Law case.

"A trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case." (Karton v. Ari Design & Constr., Inc (2021) 61 Cal.App.5th 734, 744-45.)

The Court observes that there was a higher than average amount of law and motion and the parties fully prepared for trial, conducting an initial non-jury phase of trial. The Court finds that the reasonable amount of attorney's fees incurred in this case, including bringing this motion for attorney's fees, is \$128,025.50, which includes the time spent on bringing this attorney's fees motion. The Court declines to apply a multiplier. The Court reads into the hourly rates charged by counsel the factors of risk and delay in payment. As such, the Court does not find any justification for the application of a multiplier and declines to apply such.

[E]ven though the trial court did not specifically mention other factors open to consideration when a multiplier is under consideration, [an appellate] court

must presume that the trial court considered all factors in reaching its decision,
“even though the court may not have mentioned or discussed them in its written ruling.”
(Citation omitted.)

(Mikhaeilpoor
v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 255.)

Plaintiff’s motion for attorney’s fees
is GRANTED in the amount of \$128,025.50.

As for costs
and expenses, Plaintiffs filed a memorandum of costs on January 15, 2026, and will
be addressed in Defendant’s motion to tax costs below.

Motion To Strike or Tax Costs

The Court has
reviewed the moving and opposing filed by the parties (a reply brief has not yet
been filed), but only addresses the points which the Court deems to be material
to the disposition of this motion.

Supporting Documentation Required Only If Motion To Tax Costs Is Filed

Initial
verification will suffice to establish the reasonable necessity of the costs claimed.
There is no requirement that copies of bills, invoices, statements, or any other
such documents be attached to the memorandum [of costs]. Only if the costs have been put in issue via a motion to tax costs
must
supporting documentation be submitted. (Citation omitted.) Once this occurs,
the issue becomes whether the required documentation must be of evidentiary quality.
Rule 870(a)(1) does not specify the type of documentation required.

(Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1267 (bold emphasis added).)

Challenging Party Bears Burden Where Costs Are Proper On Their Face

[T]he mere filing of a motion to tax costs
may be a “proper objection” to an item, the

necessity of which appears doubtful, or which does not appear to be proper on its face. (Citation omitted.) However, “[i]f the items appear to be proper charges the verified memorandum is prima facie evidence that the costs, expenses and services therein listed were necessarily incurred by the defendant [citations], and the burden of showing that an item is not properly chargeable or is unreasonable is upon the [objecting party].” (Citations omitted.)

The court's first determination, therefore, is whether the statute expressly allows the particular item, and whether it appears proper on its face. (Citation omitted.) If so, the burden is on the objecting party to show them to be unnecessary or unreasonable. (Citation omitted.)

(Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131 [bold emphasis and underlining added].)

Challenging Party Cannot Meet Burden With Bare Objections;
Claimant Has Burden As To Costs Improper or Unnecessary On Their Face

Where items of cost are properly objected to . . . , the costs are put in issue, and the burden of proof is on [the party claiming the costs] to establish those costs. (Ibid.) It is not necessary that the [party seeking to tax costs] . . . accompany the motion to tax cost with any affidavit. (Ibid.) Additional oral or written evidence may be submitted when the motion is heard. However, more than a bare objection is needed to rebut the presumption that fees were reasonable and necessarily incurred. (Citation omitted.) Nevertheless, if a claim is made for disbursement which on its face appears improper or unnecessary, and the item is properly challenged upon a motion to tax costs, the burden is on the claimant to establish the necessity therefor. (Citation omitted.)

(State of California v. Meyer (1985) 174 Cal.App.3d 1061, 1075 [bold emphasis added].)

Costs and expenses recoverable by a prevailing buyer in a Song-Beverly action includes items not included in the statutory definition of costs set forth in Code Civ. Proc. § 1033.5, but includes those reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794(d); Jensen v. BMW of North America, Inc. (1995) 35 Cal.App.4th 112, 137-38;

overruled in part on other grounds in *Rodriguez v. FCA US LLC* (2024) 17 Cal. 5th 189, 205.)

The sole issue in Jensen's appeal is whether she is entitled to expert witness fees under section 1794, subdivision (d), which reads in part: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees" (Italics added.)

Following trial, Jensen submitted a cost bill which included expert witness fees in the amount of \$2,527. The court denied expert witness fees on the ground Code of Civil Procedure section 1033.5 does not provide for an award of such fees. We independently review the trial court's interpretation of section 1794, subdivision (d) (9 Witkin, Cal. Procedure, supra, Appeal, § 241 and 242, pp. 246-247), and conclude the court erred in denying Jensen's expert witness fees.

Code of Civil Procedure section 1033.5 defines items allowable as "costs."

The statute expressly excludes "[f]ees of experts not ordered by the court" "except when expressly authorized by law." (Code Civ. Proc.,

§ 1033.5, subd. (b)(1), italics added.)

Section 1794, subdivision (d), permits the prevailing buyer to recover both "costs" and "expenses." Examining the language of the statute (*Halbert's Lumber, Inc. v. Lucky Stores, Inc.*, supra, 6 Cal. App. 4th at p. 1238), it is clear the Legislature intended the word "expenses" to cover items not included in the detailed statutory definition of "costs." However, because the scope of the term "expenses" is uncertain, we turn to legislative history for clues about the Legislature's intent. (*Ibid.*)

The Legislature added the "costs and expenses" language to section 1794 in 1978. (Stats. 1978, ch. 991, § 10, p. 3065.) An analysis by the Assembly Committee on Labor, Employment, and Consumer Affairs states: "Indigent consumers are often discouraged from seeking legal redress due to court costs. The addition of awards of 'costs and expenses' by the court to the consumer to cover such out-of-pocket expenses as filing fees, expert witness fees, marshal's fees, etc., should open the litigation process to everyone." (Assem. Com. on Labor, Employment & Consumer Affairs, Analysis of Assem. Bill No. 3374 (May 24, 1978) p. 2.)

In *Ripley v. Pappadopoulos* (1994) 23 Cal. App. 4th 1616 [28 Cal. Rptr. 2d 878], we stated that the "Legislature has reserved to itself the power to determine selectively

the types of actions and circumstances in which expert witness fees should be recoverable as costs and such fees may not otherwise be recovered in a cost award.” (*Id.* at p. 1625.) In this case, the Legislature amended section 1794 to provide for the recovery of “costs and expenses.”

The legislative history indicates the Legislature exercised its power to permit the recovery of expert witness fees by prevailing buyers under the Act and within the meaning of Ripley.

The trial court denied Jensen’s request for expert witness fees based on the legal determination those fees were barred by Code of Civil Procedure section 1033.5. For this reason, we remand the case to permit the court to determine whether the amount of fees sought by Jensen were “reasonably incurred by the buyer in connection with the commencement and prosecution of [this] action.” (§ 1794, subd. (d).)

(Jensen v. BMW of North America, Inc.
(1995) 35 Cal.App.4th 112, 137-38 [bold emphasis and underlining added].)

Defendant Kia America, Inc. moves to strike Plaintiffs’ Memorandum of Costs or, in the alternative, to tax \$16,017.22 of Plaintiffs claimed \$21,275.40 in costs, as follows:

1. \$281.65
in filing and motion fees, claimed under Item 1;

Defendant argues that Plaintiffs claim \$281.65 in fees with respect to unnecessary Motions. The only fees that were reasonably incurred were \$435.00 for filing the action; \$60.00 for filing A Motion To Bifurcate; and \$60.00 for filing a fee Motion. This is a total of \$555.00. The Court should, therefore, tax the additional \$281.65 in motion fees claimed by Plaintiffs.

Filing and motions fees are properly awarded to a prevailing party. (Code Civ. Proc. § 1033.5(a)(1).) As such, the burden is on Defendant as the objecting party to show them to be unnecessary or unreasonable. (Nelson, *supra*, 72 Cal.App.4th at 131.) Defendant has not made such a showing. Indeed, filing and motion fees are recoverable even if the motions were unsuccessful:

The successful plaintiff is entitled to recover the whole of his or her costs, despite a limited victory. The defendant is not entitled to an offset, even though the defendant prevailed to some (lesser) extent. (Citations

omitted.) Thus, we reluctantly conclude that because Michell obtained a net recovery, she is entitled to recover her costs as a matter of [*1201] right, even though some or all of the costs may pertain to causes of action upon which she did not prevail.

(Michell v. Olick
(1996) 49 Cal.App.4th 1194, 1200-01.)

The motion to tax Item 1, filing and motion fees is DENIED in its entirety.

2.
\$659.50 in service of process costs, claimed under Item 5;

Defendants argue that Plaintiffs and their attorneys had all of the information about the history of Plaintiffs' vehicle before they filed suit. Plaintiffs' attorneys profess to be experts in this area of the law. Given their expertise and their knowledge of the relevant facts at the outset of the litigation, there was no reason to subpoena the dealerships to obtain the records that were already in their possession. The cost of serving the subpoenas should, therefore, be taxed.

Costs of service of process are properly awarded to a prevailing party. (Code Civ. Proc. § 1033.5(a)(4).) As such, the burden is on Defendant as the objecting party to show them to be unnecessary or unreasonable. (Nelson, supra, 72 Cal.App.4th at 131.) Defendant has not made such a showing.

Plaintiffs were entitled to subpoena the custodian of records of dealership personnel to receive dealership copies of the repair orders, which Plaintiffs may not have had in their possession.

The motion to tax Item 5, service of process costs is DENIED in its entirety.

3. \$7,843.64
for expert fees, claimed under Item 8;

Defendant argues that Plaintiffs' expert did not testify. Plaintiffs have not presented any evidence to show why an expert was necessary in this case or to show that the time and hourly rates allegedly charged

by their expert were reasonable. Plaintiffs' claim for \$7,843.64 in expert fees is unreasonable, unsubstantiated and excessive. Plaintiffs have not provided any documentation to support this claim.

As noted above, a prevailing buyer under the Song-Beverly Act is entitled to recover expert witness fees. (Jensen, supra, 35 Cal.App.4th at 138.)

Plaintiffs argue that George Magana was an expert witness designated by Plaintiffs in this case and was the counterpart to KMA's expert. As evidenced by his itemized invoices (See Ex. A.), Mr. Magana performed the following tasks in this case; 1) prepare for and appear at KMA's vehicle inspection and 2) prepare for and appear at his deposition. These invoices are itemized, show Mr. Magana's reasonable hourly rate, and show the amount of time he spent on each related task. Mr. Magana's testimony was a critical component of establishing Plaintiffs' claims at trial such as the vehicle had a defect that substantially impaired use, value or safety, that was not repaired within a reasonable number of repair opportunities. This helped Plaintiffs recover the settlement obtained.

The Court finds that Plaintiff has justified the expert witness fees of Magana, as Plaintiffs were entitled to prepare thoroughly for trial. Indeed, the Court conducted a Phase I bench trial as to the legality of Defendant's pre-litigation response to Plaintiff's purchase request. The case finally settled as the parties were on the verge of the Phase II jury trial. Even if the expert witness did not testify, the standard set forth in Jensen, supra, 35 Cal.App.4th at 138 would favor an award of such fees in the court's discretion, at least where they were reasonably necessary to the conduct of the litigation (Code Civ. Proc. § 1033.5(c)(3) & (4). Indeed, costs of experts who aid in the preparation of the case of trial may be recovered even if they do not actually testify. (See, e.g., Santantonio v. Westinghouse Broadcasting Co. (1994) 25 Cal.App.4th 102, 124 [holding such as to Code Civ. Proc. § 998].)

The Court finds that Magana's \$235 – \$300 hourly rate and the 30.8 hours he billed to be reasonable. The Court will allow these costs.

The motion to tax Item 8, expert witness fees is DENIED in its entirety.

4. \$2,086.86

for models, blowups and photocopies of exhibits, claimed under Item 11;

Defendant argues that this case was settled; no models, blowups, or photocopies of exhibits were used at trial because there was no trial. Plaintiffs have not provided any receipts and does not explain how the \$2,086.86 in costs associated with Item 11 of Plaintiffs' Cost Memorandum were used at trial to aid the jury, because there was no jury. The Court should, therefore, strike Plaintiffs' costs under Item 11 of their Cost Memorandum in the amount of \$2,086.86 based on Plaintiffs' failure to justify the claimed cost.

However, the Court notes that Plaintiff had fully prepared for a jury trial before the case settled. As noted above, under the standard set forth in *Jensen*, supra, 35 Cal.App.4th at 138 would favor an award of such fees in the court's discretion, at least where they were reasonably necessary to the conduct of the litigation (Code Civ. Proc. § 1033.5(c)(3) & (4)). Even under general principles, costs of models, blowups and photocopies of exhibits are allowable in the court's discretion where the plaintiff fully prepared for trial:

Defendants contend, however, that even if the exhibit costs are not authorized by section 1033.5, subdivision (a)(12), they still may be allowed in the trial court's discretion pursuant to subdivision (c)(4). We agree. Section 1033.5, subdivision (c)(4) provides that "[i]tems not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion." Items not specifically allowable under subdivision [*364] (a) and not prohibited under subdivision (b) may nevertheless be recoverable in the discretion of the court if "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (§ 1033.5, subd. (c)(2).) Whether a cost item was "reasonably necessary" to the litigation presents a question of fact for the trial court and is reviewed for abuse of discretion. (Citation omitted.)

. . .

It was within the trial court's discretion to allow the costs for photographs and blueprints pursuant to section 1033.5, subdivision (c)(2) if they were reasonably necessary to the conduct of the litigation. Here, defendants had exhibits made for a trial which was never held because plaintiff dismissed the action on the day of trial. . . . Until a dismissal was filed, defendants were forced to continue preparing for trial in the matter. The exhibits prepared were "reasonably necessary to the conduct of the litigation." An experienced trial judge recognized that it would be inequitable to deny as allowable costs exhibits which a prudent attorney would prepare in advance of trial, and which were not used only because

the action was dismissed by the opposing party on the day of trial. Under these circumstances, the trial court did not abuse its discretion in allowing these items as costs under subdivision (c)(4).

(Applegate v. St. Francis Lutheran Church (1994) 23 Cal.App.4th 361, 363-64.)

Here, Plaintiff has provided an itemization of such costs, which included preparation of trial binders as required by the court. (Declaration of Jacob Cutler, ¶¶ 4, 8; Exh. A). The Court in its discretion will allow these costs.

The motion to tax Item 11, models, blowups and photocopies of exhibits is DENIED in its entirety.

5. \$1,680.00
for court reporter fees, claimed under Item 12;

Defendant argues that Plaintiffs claim \$1,680.00 for Court reporter fees, under Item 12. These fees are excessive on their face. Court reporter fees are only recoverable as established by statute. (Code Civ. Proc., § 1033.5, subd. (a)(11).) Under the Los Angeles Superior Court fee schedule, dated May 1, 2025, court reporters receive \$30.00[1] for hearings of one hour or less and \$382.00 for hearings of one to four hours. Plaintiffs have not presented any evidence to show why the Court's Statement Of Decision and Minute Orders would not control the conduct of the case, regardless of what may have been said at the hearings. The claimed court reporter fees were not reasonably necessary to the conduct of the litigation, as required by Code of Civil Procedure section 1033.5, subdivision (c)(2).

Plaintiff's counsel argues:

9. Plaintiffs hired a court reporter to transcribe some of the most important hearings in this case such as the motion to compel, Final Status Conference wherein trial issues/documents/pre-trial motions would be discussed and the Bench Trial where it was reasonable to create a record in the event of an appeal. Plaintiffs did in fact order a transcript to make sure they understood the court's order. KMA benefitted from and in fact stipulated to the court reporter at these hearings.

(Cutler Decl., ¶ 9.)

Per the itemization attached as Exh.

A to the Cutler Declaration, the following reporter fees were charged:

6/24/2022 First Legal Inv.: MTC (motion
to compel) (6/22/22) \$630.00

10/1/2024 Steno Inv.: FSC (final status
conference) (10/1/24) \$600.00

5/9/2025 Steno Inv.: Bench Trial (5/9/25)
\$450.00

Court reporter fees as established by
statute are recoverable costs by the prevailing party. CCP § 1033.5(a)(11). The fees of a court reporter for hearings lasting
more than one hour are the actual costs chargeable pro rata to the parties, as set
forth by the Government Code, and are costs recoverable by the prevailing party:

Gov. Code §
69953 provides:

In any case where a verbatim record is not
made at public expense pursuant to Section 69952 or other provisions of law,
the cost of making any verbatim record shall be paid by the parties in equal
proportion; and either party at his option may pay the whole. In either case,
all amounts so paid by the party to
whom costs are awarded shall be taxed as costs in the case. . . .

(Bold emphasis and underlining added.)

The Court finds
that the \$1,680.00 in court reporter fees for a case that has spanned almost five
years was reasonably necessary to the conduct of the litigation rather than merely
convenient or beneficial to its preparation. (Code Civ. Proc., § 1033.5)(c)(2).

The motion to tax Item 12, court reporter fees is DENIED in its entirety.

6. \$3,465.57
for other costs, claimed under Item 13.

Defendant

argues that Plaintiffs claim \$1,167.39 for attorney services and messengers, \$29.00 for Minute Orders and \$65.00 for court appearance professionals. These expenses are not recoverable. Plaintiffs are also not entitled to recover \$1,934.53 for travel. (The Court should, therefore, tax the \$3,465.57 in "other" costs claimed by Plaintiffs.

The \$1,934.53 costs of travel and meals are disallowed and will be taxed.

The Court is aware that *Howard v. American National Fire Ins. Co.* (2010) 187 Cal.App.4th 498, 541-42 held that the court has discretion to award meal

expenses incurred by attorneys traveling to take non-local depositions. However, the Court finds more persuasive the reasoning

in *Ladas v. California State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774-775 that meal expenses are not "necessary to the conduct of the litigation" [CCP § 1033.5(c)(2)] because attorney must eat whether or not they are conducting litigation/taking a deposition, and thus these costs are "merely convenient or beneficial" to preparation for litigation.

"Costs for courier or messenger fees are not specifically enumerated as allowable costs in Code of Civil Procedure section 1033.5, subdivision (a), neither are they prohibited in section 1033.5, subdivision (b). Thus, messenger fees may be recoverable in the trial court's discretion if "reasonably necessary to the conduct of the litigation." (Code Civ. Proc., § 1033.5, subd. (c)(2); *Ladas v. California State Auto. Assn.*, supra, 19 Cal.App.4th at p. 776.)" (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 30.)

Here, the costs were incurred over the course of nearly five years. The \$1,167.39 averages out to \$233.48 per year, or \$19.46 per month. The Court will allow these costs as "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc. § 1033.5(c)(2).)

The Court will allow the costs of minute orders (\$29.00) and court appearance professionals (\$65) at the trial setting conference to reduce billing costs (Cutler Decl. ¶ 10) as "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc. § 1033.5(c)(2).)

As such, the motion to tax Item 13, "Other"

is GRANTED IN PART in the amount of \$1,934.53.

[1]

Gov.

Code § 68086 provides:

(a) The following provisions apply in superior court:

(1) In addition to any other fee required in civil actions
or cases:

(A) For each proceeding lasting less than one hour, a
fee of thirty dollars (\$30) shall be charged for the reasonable cost of the
services of an official court reporter pursuant to Section 269[1] of the
Code of Civil Procedure. The proceeds of the fee shall be distributed to the
court in which the fee was collected.

(B) For each proceeding lasting more than one hour, a fee equal to the actual cost of providing
that service shall be charged per one-half day of services to the parties, on a pro rata basis, for the services
of an official court reporter on the first and each succeeding judicial day
those services are provided pursuant to Section 269 of the Code of Civil
Procedure.

. . .

(4) The costs for the
services of the official court reporter shall be recoverable as taxable costs
by the prevailing party as otherwise provided by law.

. . .

(Bold
emphasis added.)